A section of the media tried to portray the protests as a reflection of the division between the Indian people and the Kashmiri people. But the media does seem to get facts wrong when it comes to certain issues. All those who are protesting against the death sentence for Afzal are doing so because they know that he has not been given an opportunity to defend himself. Even the so-called separatist Kashmiri leaders are not saying that Afzal should not be hanged merely because he is a Kashmiri. They are saying that he should not be hanged because he was never given a fair trial.

In a resolution passed on 24 September 2005 in Srinagar, Syed Ali Geelani, Shabir Shah, Mohammad Yaseen Malik, Main Abdul Qayyoom and Nisar Ali said:

> The judgement of the supreme court states that the attack on the Indian Parliament resulted in heavy casualties and has 'shaken the entire nation and the collective conscience of the society will only be satisfied if capital punishment is awarded to the offender.'
>
> We the people of Kashmir ask why the collective conscience of Indians is not shaken by the fact that a Kashmiri has been sentenced to death without a fair trial, without a chance to represent himself? Throughout the trial at the sessions court Mohammad Afzal asked the judge to appoint a lawyer. He even named various lawyers but they all refused to represent him. Is it his fault that the Indian lawyers think that it is more patriotic to allow a Kashmiri to die than to ensure he gets a fair trial?[11]

So what are the facts? I mean the facts on record before the courts?

First of all, Mohammad Afzal did not have a lawyer to represent him at the stage of trial. He knew his family could never raise the exorbitant fees demanded by professional criminal lawyers, that if he asked his family to engage a lawyer it would ruin them. However, he was happy to accept a lawyer appointed by the court. The judge appointed one lawyer who never appeared. Then another was appointed and she appeared without taking instructions and even agreed to admission of documents without formal proof. In other words, she admitted on Afzal's behalf the identification of the deceased terrorists when Afzal has always maintained he knew only one of them and not the other four.

Afzal himself gave the names of four lawyers but they also refused to represent him and finally the designated judge who was in a hurry to start the trial appointed Neeraj Bansal as amicus curiae. Neeraj Bansal stated that he did not want to appear for Afzal and Afzal also expressed a lack of confidence in the advocate. But the judge wanted to get on with the trial and so insisted that Neeraj Bansal continue. However, the judge gave Afzal the right to cross examine the witnesses if he wished.